

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Peter Hoy (S7)	Team: Team # 5	CCRB Case #: 200903530	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 03/08/2009 5:00 AM	Location of Incident: West 27th Street and 10th Avenue	18 Mo. SOL 9/8/2010	Precinct: 10
Date/Time CV Reported Sun, 03/08/2009 5:56 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 03/08/2009 5:56 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Vincent Fontana	03556	931673	010 PCT
2. POM Michael Riso	02738	931925	010 PCT
3. POM Thomas Garrity	07734	933798	010 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Vincent Fontana	Discourtesy: Sergeant Vincent Fontana spoke obscenely and/or rudely to an individual named § 87(2)(b)	A . Victim Unidentified
B . POM Michael Riso	Discourtesy: PO Riso spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)	B . Unsubstantiated
C . POM Thomas Garrity	Force: PO Thomas Garrity used physical force against an individual named § 87(2)(b)	C . Victim Unidentified
D . POM Thomas Garrity	Discourtesy: PO Thomas Garrity spoke obscenely and/or rudely to an individual named § 87(2)(b)	D . Victim Unidentified

Case Summary

On March 8, 2009, § 87(2)(b) filed a complaint through the Civilian Complaint Review Board's call processing system. She stated that earlier that morning, she had exited a nightclub near the intersection of West 28th Street and Tenth Avenue in Manhattan with three friends: § 87(2)(b) and § 87(2)(b). Outside, police officers were trying to disperse a large crowd of people that had exited surrounding nightclubs. The following allegations resulted:

- **Allegation A: Sgt. Fontana spoke obscenely and/or rudely to an unidentified individual.**

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as *victim unidentified*.

- **Allegation B: PO Riso spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)**

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as *unsubstantiated*.

- **Allegation C: PO Garrity used physical force against an unidentified individual.**

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as *victim unidentified*.

- **Allegation D: PO Garrity spoke obscenely and/or rudely to an unidentified individual.**

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as *victim unidentified*.

Results of Investigation

Civilian Statements

- **Complainant/Victim:** § 87(2)(b)

Born § 87(2)(b) is a white female, § 87(2)(b)

She has brown hair and green eyes. § 87(2)(b)

On March 17, 2009, § 87(2)(b) provided a phone statement (encl. 6) and on March 20, 2009, § 87(2)(b) was interviewed at the CCRB (encl. 7A-D).

On the morning of March 8, 2009, § 87(2)(b) was at the Mansion nightclub, located at West 28th Street and Tenth Avenue in Manhattan. § 87(2)(b) had been inside of the club for three and a half hours, but had only consumed two drinks and was not intoxicated when she exited the club at approximately 4:30 a.m. with her friends § 87(2)(b), § 87(2)(b) and § 87(2)(b). Outside, a crowd of fifty to sixty people that had exited nearby nightclubs had gathered and numerous police officers were instructing people clear the area. Among the crowd was an intoxicated male that § 87(2)(b) recognized from the nightclub, but did not know by name. § 87(2)(b) observed the male attempt to give an officer, who later identified himself as "Fontana," a closed-fist handshake. Sgt. Fontana responded by

saying, “Don’t fucking touch me. What the fuck is wrong with you?” Friends of the male victim then approached and pulled him away from Sgt. Fontana. As he and his friends walked away, Sgt. Fontana yelled, “What the fuck? You don’t fucking understand? You don’t fucking speak English? Keep it the fuck moving.” When the male asked Sgt. Fontana for his name, Sgt. Fontana held his badge and shouted, “Look, ‘Fontana.’ Can you read? Are you fucking stupid? Do you want me to spell that out for you?” He also stated that he was assigned to the 10th Precinct and provided his badge number. Sgt. Fontana then added, “What are you going to do? I wanna see what the fuck you’re gonna do.” The group of males continued south on Tenth Avenue, while § 87(2)(b) and her friends trailed behind. From the middle of the block, § 87(2)(b) saw the male approach two plain clothes officers on the corner of Tenth Avenue and West 27th Street and tap the smaller of the two officers on the shoulder. § 87(2)(b) could not hear what was being said, but she saw the male point towards back Sgt. Fontana and then saw the officer push the male very hard. The officer then said something similar to, “What the fuck is wrong with you? Why the fuck are you touching me?” The male and his friends then began walking away as the officer said, “What the fuck? You guys don’t understand. The clubs are closed. Go get your cars.” When § 87(2)(b) reached the corner, she asked the officers, “Why are you guys cursing so much? There’s females around.” The heavier officer responded, “You’re a fucking cunt,” and told her to mind her business.” § 87(2)(b) then asked that officer if he was going to talk to a female in this manner and he responded, “Like I told her, you fucking cunts, why the fuck you keep turning around? Keep it the fuck moving.” The officer used the phrase “fucking cunt” numerous times and when § 87(2)(b) asked, “Is that how you talk to your mother?” he said, “Yeah, you fucking cunt.” § 87(2)(b) and her friends then walked away and did not have any other contact with the officers.

- **Complainant/Witness:** § 87(2)(b) is a white female, born § 87(2)(b) 5. On March 8, 2009, she filed an incomplete complaint through the CCRB call processing system. On March 10, 2009 and September 22, 2009, § 87(2)(b) provided phone statements (encl. 10A-B); however, she failed to appear at the CCRB to give a sworn statement on two separate occasions and was thus deemed uncooperative.

On March 8, 2009, § 87(2)(b) exited a nightclub with her friends. Outside, an male individual named § 87(2)(b) was approached and pushed by an officer who identified himself as “Fulton”, shield number 3256. The officer then told § 87(2)(b) “Don’t fuck with me.” A block away, two plain clothes officers used profanity towards the male and towards § 87(2)(b). § 87(2)(b) stated that one of her friends asked for the officers’ shield numbers, but the officers refused.

Attempts to Contact Civilians

The male victim was unknown to § 87(2)(b) and known only by § 87(2)(b) to § 87(2)(b). § 87(2)(b) stated that his identity was known by § 87(2)(b) but § 87(2)(b) was unavailable during the investigation, and thus, no further information about the male victim could be determined. Neither a valid telephone number nor a valid address for § 87(2)(b) could be found using Lexis Nexis, the White Pages phone directory, or the Coles directory (encl. 19-21).

NYPD Statement(s):

- **Subject Officer: SGT. VINCENT FONTANA**

On November 13, 2009, Sgt. Fontana was interviewed at the CCRB (encl. 11A-B). Born § 87(2)(b), Sgt. Fontana § 87(2)(b). He is bald with blue eyes.

Sgt. Fontana worked from 9:30 p.m. on March 7, 2009 to 6:27 a.m. on March 8, 2009. That tour, he was the cabaret sergeant, in uniform and assigned to a marked vehicle. He was assigned to patrol clubs in a quality of life detail. He did not remember with whom he worked, or which other officers worked that evening. He did not recall the incident and had no entries in his memo book related to the incident (encl. 12A-C). Sgt. Fontana stated that the procedure for clearing the crowds of people that exit the clubs is for officers to close the streets to vehicular traffic, stand by their RMPs with the lights on, tell people to keep moving, and direct them to the corner. Sgt. Fontana did not recognize a photograph of § 87(2)(b) nor did not recall a male attempting to give him a “pound” closed fist handshake. He did not remember anyone asking for his name and badge number. He did not recall any conversation with § 87(2)(b) about police officers cursing, did not himself use any profanity that evening, and did not hear any other officers use any profanity or use the phrase “cunt.”

- **Subject Officer: PO MICHAEL RISO**

On November 20, 2009, PO Riso was interviewed at the CCRB (encl. 13A-B). Born § 87(2)(b) he § 87(2)(b). He has black hair and brown eyes.

PO Riso worked from 10:00PM on March 7, 2009 to 6:35AM on March 8, 2009. He wore plain clothes assigned to anti-crime in a yellow taxi with PO Garrity. He did not have any entries in his memo book related to this incident (encl. 14A-C), did not remember the incident, and did not recognize a photograph of § 87(2)(b). PO Riso stated that every weekend, large groups of people form in the area when the nightclubs close. He stated that he usually does not have a role in clearing the area because the NYPD discourages him from being in large crowds without a uniform. PO Riso was aware that Sgt. Fontana was the cabaret sergeant, but did not work directly with him that morning, nor did he hear Sgt. Fontana use any profanity. PO Riso did not push anyone, nor did see his partner push anyone. PO Riso did not use profanity towards anyone that morning, nor did he hear any other officer use profanity.

- **Subject Officer: PO THOMAS GARRITY**

On November 19, 2009, PO Garrity was interviewed at the CCRB (encl. 15A-B). Born § 87(2)(b) PO Garrity § 87(2)(b). He has brown hair and green eyes.

PO Garrity worked from 10:00 p.m. on March 7, 2009 to 6:30 a.m. on March 8, 2009. He wore plain clothes assigned to anti-crime in a yellow taxi with PO Riso. PO Garrity did not have any entries in his memo book (encl. 16A-B), did not recall the incident, and did not recognize a photograph of § 87(2)(b). PO Garrity did not remember seeing Sgt. Fontana on March 8, 2009, but stated that he did not hear Sgt. Fontana use any profanities. PO Garrity did not use any force against any individual that morning, nor did any other officer use force that morning. PO Garrity did not use any profanity, nor did he hear any other officer use profanity that morning.

NYPD Documents

- **10th Precinct Roll Call**

The Roll Call for Tour 1 on March 8, 2009 shows that Sgt. Fontana, PO Riso, and PO Garrity were all working (encl. 17A-D).

- **10th Precinct Vehicle Utilization Log**

The Vehicle Utilization Log shows that PO Garrity signed out the unmarked yellow taxi cab on 11:40 p.m. on March 7, 2009 and returned it at 5:33 a.m. on March 8, 2009. It shows no other officers that used a yellow taxi cab at the time of the incident (encl. 18).

Status of Civil Proceedings

- As of December 10, 2009, § 87(2)(b) has not filed a Notice of Claim with the City of New York with regard to the incident (encl. 23H).

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian CCRB History

- § 87(2)(b) and § 87(2)(b) have not filed any other CCRB complaints (encl. 4A-B).

Subject Officers CCRB History

- Sgt. Vincent Fontana has been a member of the service for 7 years. In CCRB case number 200507325, allegations that he abused his authority by stopping and searching an individual were substantiated. As a result, the NYPD issued him a command discipline (encl. 1A-B).
- PO Michael Riso has been a member of the service for 7 years and there are no substantiated CCRB allegations against him (encl. 2).
- PO Thomas Garrity has been a member of the service for 5 years and there are no substantiated CCRB allegations against him (encl. 3).

Conclusion

Identification of Subject Officers

During the incident, § 87(2)(b) heard the first subject officer say his name, shield number and Precinct aloud – these matched those Sgt. Fontana. The 10th Precinct Roll Call shows that Sgt. Fontana was working at the time of the incident. The other two subject officers were described as white male officers, one slimmer than the other, who drove a police vehicle marked to look like a yellow taxi cab. PO Riso and PO Garrity, respectively, match these physical descriptions and were the only officers assigned to a yellow taxi cab in the 10th Precinct at the time of the incident.

§ 87(2)(g)

Investigative Findings and Recommendations

- **Allegations Not Pleaded**

§ 87(2)(g)

- **Allegation A: Sgt. Fontana spoke obscenely and rudely to an unidentified individual.**

§ 87(2)(g)

it is recommended that **Allegation A** be closed as *victim unidentified*.

- **Allegation B: PO Riso spoke obscenely and rudely to § 87(2)(b) and § 87(2)(b)**

§ 87(2)(b)

§ 87(2)(b) alleged that PO Riso used profanity when addressing her and § 87(2)(b) § 87(2)(b) was unavailable to corroborate this allegation. PO Riso and his partner, PO Garrity, did not remember PO Riso using any profanity that morning. § 87(2)(g)

it is recommended that **Allegation B** be closed as *unsubstantiated*.

- **Allegation C: PO Garrity used physical force against an unidentified individual.**

§ 87(2)(g)

it is recommended that **Allegation C** be closed as *victim unidentified*.

- **Allegation D: PO Garrity spoke obscenely and rudely to an unidentified individual.**

§ 87(2)(g)

it is recommended that **Allegation D** be closed as *victim unidentified*.

Team: _____

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Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date